

26SMCV02840 26SMCV02840

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Case Number: 26SMCV02840 Hearing Date: September 3, 2026 Dept: 205

Superior Court of California

County of Los Angeles – West District

Beverly Hills Courthouse / Department 205

MAURISSA GEORGE,

Plaintiff,

v.

COMMUNITY CORPORATION OF SANTA MONICA c/o TARA HENDERSON-BARAUSKAS, et al.,

Defendants.

Case No.: 26SMCV02840

Hearing Date: September 3, 2026

[TENTATIVE] order RE:

DEFENDANTS' special

MOTION TO STRIKE

BACKGROUND

This case involves a landlord tenant dispute. Plaintiff Maurissa George is a tenant in a building managed by Defendant Community Corporation of Santa Monica (CCSM), which prohibits pets. Plaintiff has a mental disability.

On January 28, 2026, CCSM personally served the Plaintiff an unlawful detainer summons packet. Plaintiff alleges Santa Monica Police officers came to her home, accompanied by a social worker. Plaintiff claims they were there, on behalf of CCSM. Plaintiff spoke to the officers and social worker saying there was no crisis and she was not wanting to kill or harm herself or others.

The officers then announced that the landlord wanted to come in and inspect the apartment. If she allowed them into the apartment for an inspection, the officer could end this situation and they could leave. Plaintiff allowed them in, but she was eventually placed on a 5150 hold. Plaintiff was put in handcuffs and sat on a bench in front of her apartment, on display before her neighbors.

Plaintiff alleges the 5150 report identified Defendants Savanna Bachelder-Arul and Jonathan Campbell as witnesses and the report contained false statements. According to Plaintiff, the 5150 report falsely states that Plaintiff was "psychotic" and "highly suspicious of others, housing staff and others, lacking insight, judgement, impulse control." The report also claimed that Plaintiff believed cameras in the fire alarms were spying on her.

After she was removed from her apartment, Plaintiff claims she was "physically assaulted, forcefully restrained to the bed by a group of male employees to take a chest x-ray against her wishes." She also claims she was forced to take off her "religious covering". Plaintiff then claims she was forcibly injected medication, by a group of men flipping her over, holding her down, lifting her dress and pulling down her shorts and underwear, as punishment for her request to exercise her religious right to be covered.

Plaintiff was then stripped of her boots and socks and forced to go around the hospital barefoot. Plaintiff became physically ill at the hospital, for days on end, from the combination of excessive extreme stress, physical abuse and cold exposure. She left the hospital with bruises on her torso and inflamed skin from the physical and environmental hazards she experienced (including an exhaust problem, a broken and dirty shower, and no running water). Plaintiff also claims she was subjected to racial insults, threats of violence and sexual aggression.

Eventually, Plaintiff was let go. On the drive home, she was told by Jonathan Cambell that her emotional support animal (an exotic bird) had died while she was at the hospital, and that the dead bird was in her freezer. Plaintiff was understandably traumatized by the death of her bird.

In December 2025, Plaintiff claims she discovered mold in her unit. Plaintiff then filed a complaint, requesting a mold inspection by Los Angeles County Department of Public Health. In total, she filed three requests for inspection. DPH told Plaintiff that CCSM was ordered to fix the mold and electric problems, but Plaintiff claims instead of doing the repairs, CCSM filed an unlawful detainer eviction against Plaintiff. Defendant Christian Leguizamon wrote and had hand delivered to Plaintiff, a covenant or quit envelope, which contained a Measure RR Letter that threatened eviction by December 10th, 2025, for covenant violations. The letter mistakenly referred to Plaintiff as "Semen", which Defendant explains was a cut and paste error based on a prior letter Defendant had written to a tenant named "Semen" (pronounced "Simon").

On December 15 and 16, 2025, Plaintiff filed two different unlimited civil lawsuits against Defendants CCSM and Christian Leguizamon for sexual harassment and intentional infliction of emotional distress along with other claims of defamation and privacy invasions "similar to those contained herein." Both lawsuits revolved around the Measure RR letter that was sent to Plaintiff by Mr. Leguizamon. Both actions were dismissed pursuant to a special motion to strike.

On December 16, 2025, the property manager, Patrick Hubbard, hand-delivered a Notice of Material Breach of Lease Agreement in Accordance with Santa Monica Measure RR letter from the Law of Offices of Kimball, Tirey & St. John, LLP. The letter contained "select photos" were used as evidence of property damage violations that supported eviction.

The operative first amended complaint (FAC) contains a slew of claims including: (1) Bane Act violation, (2) intentional infliction of emotional distress, (3) dependent adult civil act violation, (4) conversion, (5) tortious injury to pet, (6) exemplary damages, (7) special value, (8) negligence, (9) false light, (10) intrusion into private affairs, (11) disclosure of private facts, (12) false imprisonment, (13) breach of the covenant of quiet enjoyment, (14) Santa Monica tenant harassment violation, (15) FEHA violation.

This hearing is on Defendants CCSM, Leguizamon and Arul's special motion to strike the Complaint. Defendants argue that Plaintiff's claims against them all arise out of protected speech and petitioning activity, relating to an eviction lawsuit and an official 5150 proceeding. Further, Defendants argue that the claims have no merit because they are barred by the litigation privilege and res judicata. There was no opposition filed as of the posting of the tentative ruling.

REQUEST FOR JUDICIAL NOTICE

Defendants request judicial notice of (1) Plaintiff's complaint filed on December 15, 2025 in Case No. 25SMCV06443, (2) notice of ruling on Defendants' special motion to strike in Case No. 25SMCV06443, (3) judgment of dismissal entered by the Court in Case No. 25SMCV06643, (4) Plaintiff's complaint filed on December 16, 2025 in Case No. 25SMCV06475, (5) notice of ruling on Defendants' special motion to strike in Case No. 25SMCV06475, (6) judgment of dismissal entered by the Court in Case No. 25SMCV06475, (7) unlawful detainer complaint filed on January 16, 2026 in Case No. 26SMUD00113, (8) answer to the UD complaint filed on February 5, 2026 in Case No. 26SMUD00113, (9) minute order dated July 28, 2026 confirming a stipulated judgment between CCSM and George in Case No. 26SMUD00113, and (10) a case summary of records and proceedings in Case No. 26SMUD00113. The Court grants the request pursuant to Cal. Evid. Code sections 452(d) and 453.

LEGAL STANDARD

"Litigation of an anti-SLAPP motion involves a two-step process. First, the moving defendant bears the burden of establishing that the challenged allegations or claims arise from protected activity in which the defendant has engaged. Second, for each claim that does arise from protected activity, the plaintiff must show the claim has "at least 'minimal merit.' If the plaintiff cannot make this showing, the court will strike the claim." (Bonni v. St. Joseph Health System (2021) 11 Cal.5th 995, 1009.)

DISCUSSION

First Prong

On the first prong, "courts are to consider the elements of the challenged claim and what actions by the defendant supply those elements and consequently form the basis for liability. The defendant's burden is to identify what acts each challenged claim rests on and to show how those acts are protected under a statutorily defined category of protected activity." (Bonni, 11 Cal.5th at 1009.) "A defendant need only make a prima facie showing at this stage." (Ojeh v. Brown (2019) 43 Cal.App.5th 1027, 1035–1036.)

Defendants argue that their actions leading to the UD action (including the service of the Measure RR letter) and their report to the police that prompted the 5150 hold are protected activities. The Court agrees.

Subdivision (e)(1) of the anti-SLAPP statute protects "any written or oral statement or writing made before a legislative, executive, or judicial proceeding, or any other official proceeding authorized by law." (Code Civ. Proc., § 425.16, subd. (e)(1).) Subdivision (e)(4) protects "any other conduct in furtherance of the exercise of the constitutional right of petition[.]"

Here, part of Plaintiff's complaint is based on the Measure RR letter which Plaintiff claims is false as well as allegedly false report(s) to the police that led to Plaintiff's 5150 hold. A Measure RR letter is a predicate to an unlawful detainer action. As

such, it is a communication preparatory to the bringing of the unlawful detainer action and falls within the protection of the anti-SLAPP statute, much like a three day notice to quit. (*Feldman v. 1100 Park Lane Associates* (2008) 160 Cal.App.4th 1467, 1479.)

As to the letter or complaint which precipitated the 5150 hold, it is also protected activity. "The law is clear that communications to the police are within SLAPP." (*Comstock v. Aber* (2012) 212 Cal. App. 4th 931, 941.) Even allegedly false police reports are protected activity unless "the record conclusively demonstrates that a police report is false." (See *Kenne v. Stennis*, 230 Cal.App.4th at 966-967.) "[C]onduct must be illegal as a matter of law to defeat a defendant's showing of protected activity" so "[t]he defendant must concede the point, or the evidence conclusively demonstrates it, for a claim of illegality to defeat an anti-SLAPP motion at the first step." (*City of Montebello v. Vasquez* (2016) 1 Cal.5th 409, 424, 205.)

However, the Court disagrees that Plaintiff's claims are based solely on the preparatory steps leading to the UD action and the 5150 hold proceedings. Plaintiff also claims that there was mold contamination in her unit which went unaddressed, Defendant Leguizamon sexually harassed her, and Defendants were negligent in the care of her bird, after she was forced out of her unit which eventually led to the bird's death. As to these allegations, the Court concludes Defendants have not met their burden of showing they are based on protected activity.

Of course, Defendants may ultimately prevail on their argument that they did not owe a duty of care to Plaintiff to take care of her bird, or that the other claims are barred by res judicata or the rule against claim splitting. But that is the subject of another motion, and is not within the scope of a special motion to strike.

Second Prong

Once a defendant demonstrates that protected conduct is at issue, the plaintiff must show that the complaint is both legally sufficient and supported by a sufficient prima facie showing of facts to sustain a favorable judgment if the evidence submitted by the plaintiff is credited. (See *Navellier v. Sletten* (2002) 29 Cal.4th 82, 88-89.) "Precisely because the statute (1) permits early intervention in lawsuits alleging unmeritorious causes of action that implicate free speech concerns, and (2) limits opportunity to conduct discovery, the plaintiff's burden of establishing a probability of prevailing is not high: We do not weigh credibility, nor do we evaluate the weight of the evidence. Instead, we accept as true all evidence favorable to the plaintiff and assess the defendant's evidence only to determine if it defeats the plaintiff's submission as a matter of law. Only a cause of action that lacks 'even minimal merit' constitutes SLAPP." (*Overstock.com, Inc. v. Gradient Analytics, Inc.* (2007) 151 Cal.App.4th 688, 699.)

The SLAPP statute's second element--a "probability of prevailing"--means a "reasonable probability of prevailing, not prevailing by a preponderance of the evidence. For this reason, a court must apply a 'summary-judgment-like' test, accepting as true the evidence favorable to the plaintiff and evaluating the defendant's evidence only to determine whether the defendant has defeated the plaintiff's evidence as a matter of law." (*Gerbosi v. Gaims, Weil, West & Epstein, LLP* (2011) 193 Cal.App.4th 435, 444.)

Defendants argue that their activities in connection with the UD action and their participation in the 5150 hold proceedings are privileged under Civil Code section 47. The Court agrees. Section 47, subdivision (b), "establishes a privilege that bars liability in tort for the making of certain statements." (*Hagberg v. California Federal Bank* (2004) 32 Cal.4th 350, 360.) Subdivision (b)(3) and (b)(4) confer immunity from civil liability for statements made in any "official proceeding authorized by law" and "the initiation or course of any other proceeding authorized by law...". It is an "absolute privilege" and bars all tort causes of action except a claim for malicious prosecution. (*Whelan v. Wolford* (1958) 164 Cal.App.2d 689, 694.)

"[I]t is now well established that the litigation privilege applies without regard to 'motives, morals, ethics or intent.' (Silberg, 50 Cal.3d at . 220.) The litigation privilege is simply a test of connectedness or logical relationship to litigation. (*Blanchard v. DIRECTV, Inc.*, 123 Cal.App.4th at 922.)

The litigation privilege “serves broad goals of guaranteeing access to the judicial process, promoting the zealous representation by counsel of their clients, and reinforcing the traditional function of the trial as the engine for the determination of truth. Applying the litigation privilege to some forms of unlawful litigation-related activity may advance those broad goals notwithstanding the occasional unfair result in an individual case.” (Flatley v. Mauro (2006) 39 Cal.4th 299, 324.) “To achieve this purpose of curtailing derivative lawsuits, the courts have interpreted the litigation privilege broadly.” (Feldman v. 1100 Park Lane Associates (2008) 160 Cal.App.4th 1467, 1485.) Any doubt about whether the privilege applies is resolved in favor of applying it. (Optional Capital, Inc. v. Akin Gump, Strauss, Hauer & Feld LLP (2017) 18 Cal.App.5th 95, 116.)

Here, the litigation privilege applies to bar all of the allegations relating to the investigation and filing of the UD action and the 5150 hold proceedings, which are both clearly “official proceedings.” (See Kenne v. Stennis, 230 Cal.App.4th 953, 965.) [litigation privilege applies to communications that have ‘some relation’ to a lawsuit, i.e., making of allegedly false police reports and filing of harassment petitions.]

CONCLUSION

For the foregoing reasons, the Court GRANTS IN PART and DENIES IN PART Defendants’ special motion to strike. Defendants are ordered to prepare a proposed order identifying the specific paragraphs and/or allegations to be stricken from the Complaint, consistent with this Order, to be filed with the Court within 10 days of this Order.

DATED: September 3, 2026 _____

Edward B. Moreton, Jr.

Judge of the Superior Court